

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

Chief:

To be completed by City/County Clerk

License

Fees

Annual Fee:

\$ 1500.00

Prorated Fee:

\$

Transfer Fee:

\$

Publishing Fee:

\$ 1000.00

Publishing Fee Direct Billed to Applicant: ☐

Local License #:

2318671

Date filed with

clerk:

1/13/22

Advertising Dates: (2 Weeks)

3/31/22 & 4/7/22

Hearing Date:

4/11/22

License Term:

Month

Day

Year

Through

Month

Day

Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant:

Peaches' Package Liquor & Bar LLC

Trade/Business Name (dba):

Peaches' Package Liquor & Bar LLC

Building to be licensed/Building Address:

Anderson Come, 3rd Filing, Lot 2 Block 1

Number & Street

Cheyenne

WY

82009

Laramie

Local Mailing Address:

1210 Jessi Drive

Cheyenne

WY

82009

Local Business Telephone Number: (307) 631-2450

Fax Number: ()

Business E-Mail Address: tyrell.dallas@gmail.com

FILING FOR☒ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OWNERSHIP

FORMERLY HELD BY:

FILING IN (CHOOSE ONLY ONE)☒ CITY OF: Cheyenne☐ COUNTY OF:☐ ASSIGNMENT LETTER ATTACHED**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP/LLP☒ LLC☐ CORPORATION☐ LTD PARTNERSHIP☐ ORGANIZATION☐ OTHER**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)****RETAIL LIQUOR LICENSE**☐ ON-PREMISE ONLY (BAR)☐ OFF-PREMISE ONLY (PACKAGE STORE)☒ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)☐ RESTAURANT LIQUOR LICENSE☐ RESORT LIQUOR LICENSE☐ BAR AND GRILL**LIMITED RETAIL (CLUB)**☐ VETERANS CLUB☐ FRATERNAL CLUB☐ GOLF CLUB☐ SOCIAL CLUB☐ MICROBREWERY☐ WINERY☐ DISTILLERY SATELLITE☐ WINERY SATELLITE☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT**SPECIAL DESIGNATIONS**☐ CONVENTION FACILITY☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM☐ GOLF CLUB☐ GUEST RANCH☐ RESORTTo Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**☐ FULL TIME (e.g. Jan through Dec)

(specify months of operation)

from Jan to Dec

☐ SEASONAL/PART-TIME

DAYS OF WEEK (e.g. Mon through Sat)

from Sun to Sat

☐ NON-OPERATIONAL/PARKED

HOURS OF OPERATION (e.g. 10a - 2a)

from 11 am to 2 pm

ALL APPLICANTS MUST COMPLETE QUESTIONS 1-4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☒ YES (own) ☐ YES (lease)
- (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page _____ paragraph _____ of lease.
- (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)
2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b) ☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:
-
4. Does the **applicant** have any interest or intent to acquire an interest in any other liquor license issued by **this** licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
- If "YES", explain: _____
-

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a) ☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO
-

7. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL ☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL ☐ MICROBREWERY

9.

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B):

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Dallas Tyrnell	2-3-1993	120 Sess. Drive Chapman, WY 82409	307 681-2450	> 1	100	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☒ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
COUNTY OF Laramie) SS.

Signed and sworn to before me on this 28th day of January, 2022 that the facts alleged in the foregoing instrument are true by the following:

1)	<u>Dallas W. Tyrnell</u> (Signature)	<u>Dallas W. Tyrnell</u> (Printed Name)	_____ Title
2)	_____ (Signature)	_____ (Printed Name)	_____ Title
3)	_____ (Signature)	_____ (Printed Name)	_____ Title
4)	_____ (Signature)	_____ (Printed Name)	_____ Title
5)	_____ (Signature)	_____ (Printed Name)	_____ Title
6)	_____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:

Caitleen Thelan
Signature of Notary Public

(2/21)
(SEAL)

My commission expires: October 22, 2022



Peaches' Package Liquor and Barr LLC
Dallas Tyrrell
1210 Jessi Drive
Cheyenne, WY

January 24th, 2022

Dear Mayor Collins and City Council Members,

Thank you for your time and consideration for my application to add a liquor store and bar to our community. My name is Dallas Tyrrell, a lifelong Laramie County resident with a passion to make our community a better place.

My vision for this new business would be a gathering place for community fundraisers, events and just ultimately a place anyone can meet for a good time. Located in an easily accessible location to all people within the city and county.

There are currently no licenses that sell liquor open to the public with 1 mile in any direction of this proposed location; thus meeting a long desired need of our citizens living in our community. Also with the location being so close to a Wal-Mart it will be easily accessed.

The site currently meets zoning requirements to hold this business. This store being built would help diversify the other properties around this location. Also please note this location is NOT located within 500 feet of a hospital, church, school or daycare facility.

Once this application is approved I believe the liquor store can and will be open for business approximately 25 months after the approval. I have attached my plans for the building proposed.

Again, thank you for your time and consideration and I ask that you please approve my application.

Sincerely,

A handwritten signature in blue ink that reads "Dallas W. Tyrrell". The signature is fluid and cursive, with the first name "Dallas" being more prominent.

Dallas W. Tyrrell, Owner



January 28, 2022

To Whom It May Concern:

The purpose of this letter is to set forth some of the basic terms and conditions of the proposed purchase by Peaches' Package Liquor and Bar LLC. of certain real estate owned by Goodwill Industries of Wyoming, Inc. The terms set forth in this letter will not become binding until a more detailed "Purchase Agreement" is negotiated and signed by the parties.

The property proposed to be sold is located at Converse Avenue and Mason Way and is legally described as: Anderson Corner, 3rd filing: Lot 2, Block 1, Cheyenne WY.

The purchase is contingent on approval of application. Buyer is providing a Pre-qualification letter with this letter of intent.

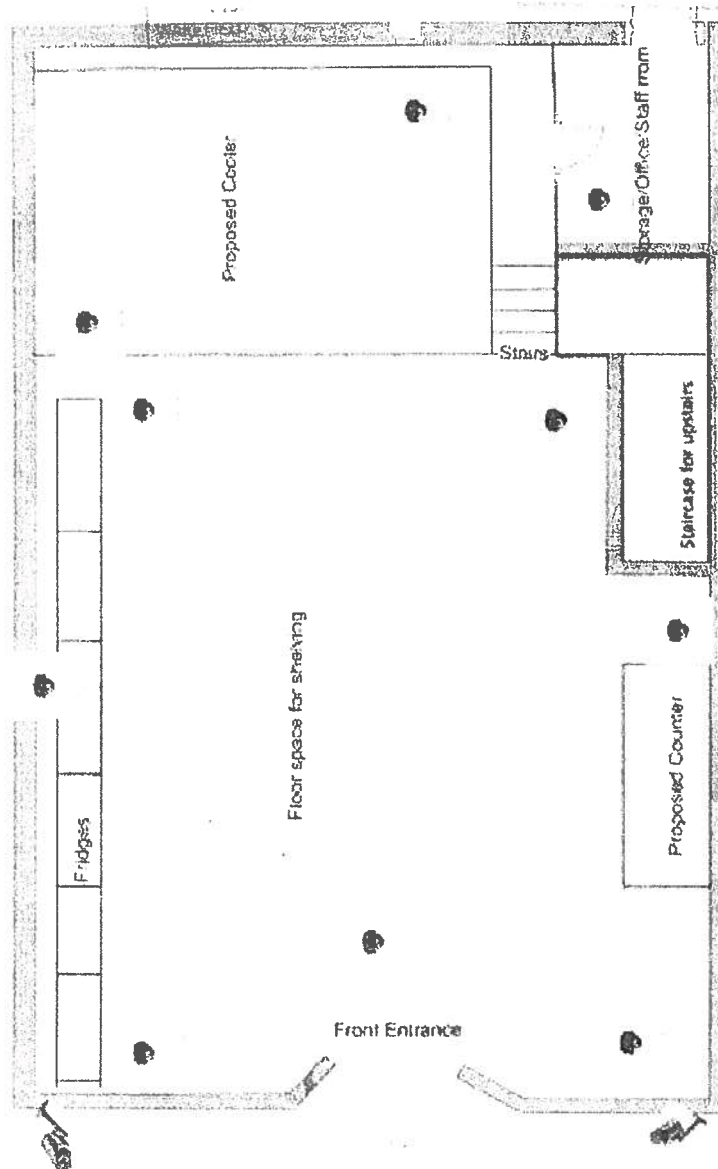
All other terms and conditions will also be negotiated and signed in a more detailed "Purchase Agreement."

If you have any questions or concerns, please feel free to contact myself at (307) 631-5069 or Dallas Tyrrell at (307) 631-2450.

Thank you for your consideration.

Sincerely,

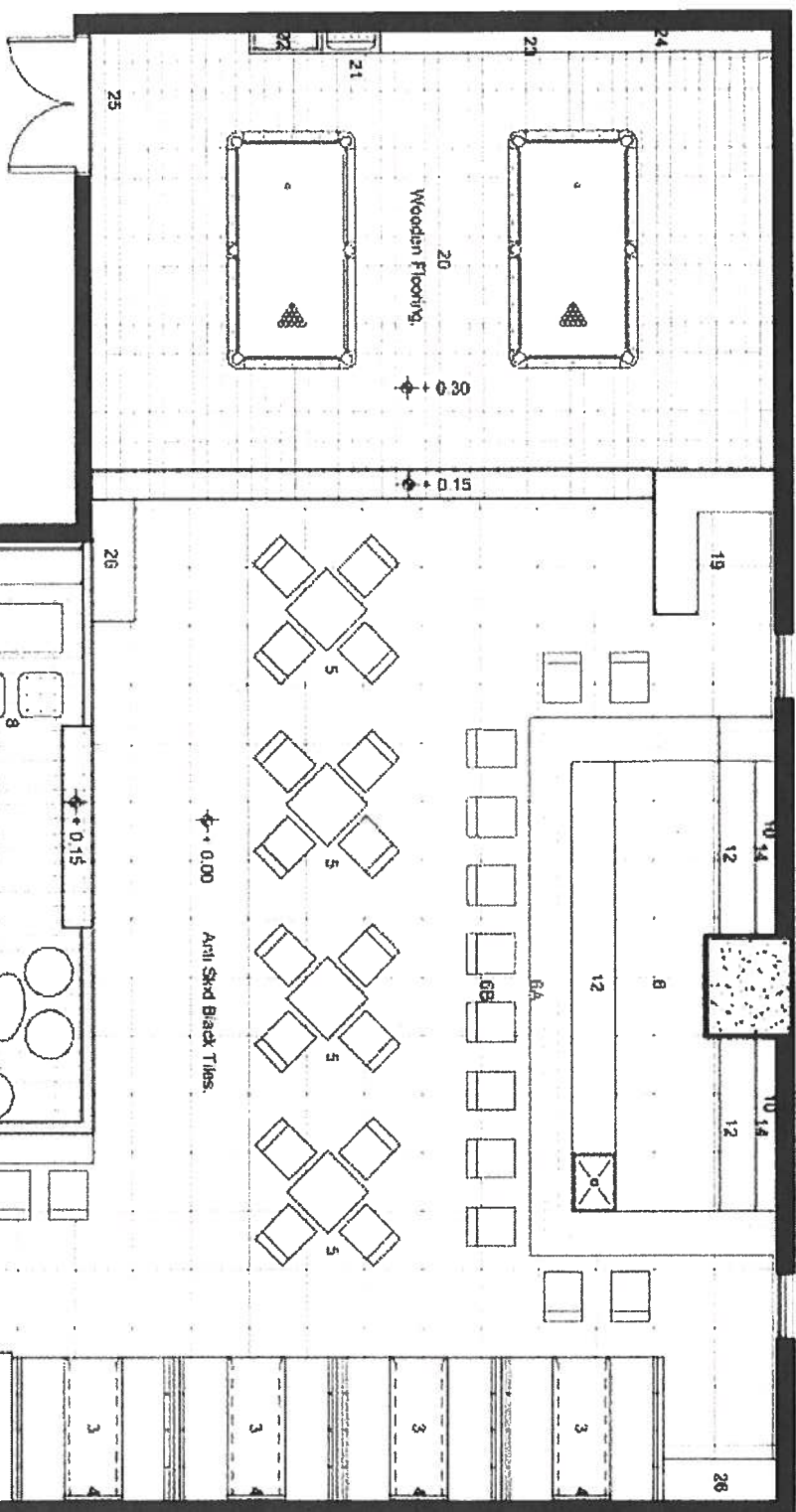
Vicki Sopr
Realtor
#1 Properties



Masonry

Package liquor

1. Entrance
2. Display Wall
3. American Seating
4. Wooden Panel for Poster and Private TV for Individual Sports Channel
5. High Dining Table with Bar stools
6. Bar Area
- 6A. Bar Counter
- 6B. Bar Stool
7. Bean Bag Area
8. Low Seating with Puffs
9. Private Party Area/ Casual Dining
10. LCD TV (Sports)
11. Private Bar Counter
12. Fridge
13. Private Bar Area
14. Ledge for Bottle display
15. Backlit Bar Zone
16. Dart Zone
17. Play Station Zone
18. High Ledge with Bar Stools
19. DJ Zone
20. Pool Table Area
21. Cue Holder
22. Electrical Box
23. Ledge for Glasses
24. Display wall for Frames
25. Way to Kitchen
26. Service Counter and Storage



0 0.75 2.25 5.25 M

Floor Plan

with acorn wooden Bar Side

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Peaches' Package Liquor and Bar LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **20th** day of **January, 2022** at **4:31 PM**.

Remainder intentionally left blank.



Filed Date: 01/20/2022

Edward A. Buchanan

Secretary of State

Filed Online By:

Dallas Tyrrell

on 01/20/2022

Written Alcohol Training:

ALL EMPLOYEES WILL BE REQUIRED TO COMPLETE TIPS TRAINING REGARDLESS OF POSITION AND BE ADDITIONAL TRAINED ON AS FOLLOWS PRIOR TO BEING ABLE TO START.

Additional training to include:

OBEY ALL STATE AND FEDERAL LAWS

MARRIAGE OF LIQUOR: It is illegal to transfer liquor from one bottle to another, even if it is the exact same brand.

ALWAYS CHECK FOR PROPER LEGAL IDENTIFICATION: Wyoming law requires every person in a bar to have proper identification.

The four most common acceptable forms of ID are:

1. State issued ID
2. State issued Driver's License
3. Military ID
4. Passport

*All with a picture

*Expired ID's are NOT valid.

The legal drinking age is at least 21 years of age. Never assume someone's age. It is illegal to serve a minor. Refuse service if necessary.

DO NOT OVERSERVE: It is illegal to serve an obviously intoxicated person. The federal “dram shop” act states you may be liable for alcohol-related damages incurred by a patron you served.

If someone becomes drunk in the bar, politely but firmly refuse to serve them anything alcoholic. Best practice is to offer them something else; water, something to eat, soda, etc.

KNOW YOUR CLOSING TIME: Give “last call” ahead of time and stick to it. This keeps you from being in the position of taking customer’s drinks away. It is illegal to serve alcohol, or for patrons to continue to drink in your establishment after the time your state requires. Wyoming

State Law is 2:00am